

April 13, 2026
Dept. 9
Probate Tentative Rulings

8.	24PR0112	IN THE MATTER OF PATSY DIGIURCO REVOCABLE LIVING TRUST
OSC Hearing		

Petitioner Dani Henter, is one of two beneficiaries of the Patsy Digiurco Revocable Living Trust of 2017 (“Trust”) and has standing under Probate Code § 17200(a) to bring this petition. The Trust was established on November 7, 2017, by Patsy Sue Digiurco (“Decedent”) and became irrevocable at her death on February 22, 2023. The successor trustee of the Trust, Amber Peters, was appointed by Order of this Court on July 3, 2024, because the named trustee predeceased the Decedent.

On August 21, 2025, Petitioner Dani Henter filed a Petition for Instructions (“Petition I”) requesting the Court to intervene in a dispute regarding the estate’s personal property. After a hearing on September 29, 2025, the Court suspended Amber Peters as trustee.

The Trust, at 6.03(B), provides for an equal distribution of all Trust assets to Tarra DiGiurco and Dani Henter. Petitioner alleges that Tarra had taken possession of the Trust real property and made unilateral decisions regarding removal and disposal of tangible personal property that was located inside the property. Petition I, Exhibits C through I consist of correspondence related to and listing the missing property. Petition I requests instructions and full and final distribution as to these assets.

After the October 20, 2025, hearing, on October 31, 2025, the Court appointed Jodie Moreno as successor trustee and ordered Amber Peters to transfer all trust assets to Jodie Moreno within 30 days.

Jodie Moreno, the current trustee of the Trust, filed a Petition for Instructions on January 26, 2026 (“Petition II”). She reports that the prior trustee, Amber Peters, has failed to cooperate in transferring Trust assets, in violation of the Court’s Order.

The Trustee reports that as to cash assets, the value of payments and charges attributable to Ms. Digiurco (\$166,276) are more than was available to distribute to Ms. Henter (\$44,600). Further, Petition II alleges that the division of personal property, valued between \$30,000 and \$55,000, the original dispute that led to this action, has not been resolved. Petition II attaches Exhibit F, a list of items that Ms. Henter represents are in Ms. DiGiurco’s possession, and Exhibit G, representing a list of items which, according to the Petition, Ms. DiGiurco concedes are in her possession.

Although the trustee can adjust the cash distributions in order to compensate for past unequal distributions and the value of the personal property that has been retained by Ms. DiGiurco, there is insufficient cash remaining in the Trust estate to fully compensate Ms. Henter for the value of the personal property retained by Ms. DiGiurco.

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Petition II alleges that Ms. Digiurco is “holding hostage trust assets” including items of financial and sentimental value, and refuses to compensate the Trust for past overpayments of her share. Petition II requests the Court’s instructions as to how to proceed to allow equal distribution of Trust assets in accordance with the terms of the Trust. Specifically, Petition II requests an Order:

- Imposing sanctions in an amount deemed fit by the court against previous trustee Amber Peters, made payable to the trust, for her failure to abide by this Court’s order to turn over records to the current Trustee after her removal;
- Imposing sanctions against Ms. Peters, made payable to the trust, for her failure to properly track distributions she made during her term as trustee, leaving this trust with a significant imbalance;
- Instructing Ms. DiGiurco to return to the trust cash that was erroneously distributed to her in the amount of \$60,000 or any other amount deemed fit by the court;
- Instructing Ms. DiGiurco, at her own expense, return and have delivered ALL trust property in her possession, to a Storage Unit that the Trustee will obtain from Placerville Storage within 14 days;
- Instructing Beneficiary Ms. DiGiurco to make copies, at her own expense, of all family photos owned and in her possession to be turned over to the Trustee within 30 days, so that they can be distributed to Ms. Henter;
- Instructing the Trustee to place values, distribute (without dispute) all tangible trust property in a manner that allows for equalization of distributions to attempt to balance the imbalance in this Trust, in any manner necessary.

Petition II has all of the elements of a petition pursuant to Probate Code § 850, which permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief. Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

All the requirements of a Section 850 petition are met in this case. Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition. The notice and Petition were served electronically on January 29, 2026, and filed on February 5, 2026.

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Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

* * *

Pursuant to Probate Code §850 and Estate of Heggstad, 16 Cal.App. 4th 943, 947-950 (1993), the Court finds sufficient evidence that the personal property that is listed in Petition II, Exhibit G is part of the Trust.

At the hearing held on March 9, 2026, the Court ordered the items listed in Exhibit F of the Petition for Instructions to be placed into storage within 20 days, and that the parties continue to work together to determine distribution of the items listed in the Petition. The Court further set this date for an OSC hearing against Ms. Peters.

TENTATIVE RULING #8: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, APRIL 13, 2026, IN DEPARTMENT NINE.